

Tentative Rulings for Department 503

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Tentative Ruling

Re: ***Aguilar v. Saint Agnes Medical Center, et al.***
Superior Court Case No. 23CECG02274

Hearing Date: September 17, 2026 (Dept. 503)

Motion: by Plaintiff to Reopen Discovery

Tentative Ruling:

To deny Plaintiff Sophia Aguilar's motion to reopen discovery in its entirety.

Explanation:

Plaintiff Sophia Aguilar moves to reopen discovery to obtain additional depositions of Persons Most Knowledgeable for defendant Saint Agnes Medical Center, depositions of percipient witnesses who treated decedent Noe Aguilar while admitted to Saint Agnes Medical Center, Persons Most Qualified for UCLA Ronald Reagan Medical Center ("UCLA"), and percipient witnesses who treated decedent Noe Aguilar while admitted to UCLA.

Per Code Civil Procedure section 2024.020, subdivision (a), the discovery cutoff is 30 days before the initial trial date. The court can extend the discovery cutoff, taking into consideration the following:

- (1) The necessity and the reasons for the discovery.
- (2) The diligence or lack of diligence of the party seeking the discovery or the hearing of a discovery motion, and the reasons that the discovery was not completed or that the discovery motion was not heard earlier.
- (3) Any likelihood that permitting the discovery or hearing the discovery motion will prevent the case from going to trial on the date set, or otherwise interfere with the trial calendar, or result in prejudice to any other party.
- (4) The length of time that has elapsed between any date previously set, and the date presently set, for the trial of the action.

(Code Civ. Proc. § 2024.050, subd. (b).)

The necessity of the Saint Agnes Medical Center-related discovery in particular is tied to Dr. Charles Bailey's declaration that there are gaps in the records. The declarations attached as Exhibit B to the declaration in support of the motion at bench are those submitted in support of plaintiff's oppositions to the motions for summary judgment of Drs. Bharati, Roshan, and Yankey, and Saint Agnes Medical Center. The declaration submitted for the Yankey motion refers directly to records Dr. Bailey asserts are missing from the Saint Agnes medical records he reviewed or depositions he believes

are missing from evidence. (Ex. B, June 9, 2026 Declaration ISO Yankey, ¶ 5a-h, aa-ff.) The fourth declaration in Exhibit B is not labelled as in response to a specific motion but was submitted in support of plaintiff's opposition to the motion for summary judgment filed by Saint Agnes Medical Center. This declaration is similar to the Yankey declaration in its commentary on the absence of medical records included in the Saint Agnes chart.

When questioned in deposition regarding the need for additional records and depositions, Dr. Bailey's testimony undermined plaintiff's position. Dr. Bailey testified that he did not receive the entire medical chart produced in discovery and that he would be surprised if additional depositions of Saint Agnes persons most knowledgeable would be necessary if he had access to the entire chart. (Penner Decl., ¶ 15(a)-(b); Mish Decl., ¶ 4; Casheros Decl., ¶ 11.)

In light of the testimony of Dr. Bailey undermining the need for further discovery from Saint Agnes Medical Center based primarily on his declarations, the court finds plaintiff has not demonstrated there is a necessity for further discovery from Saint Agnes Medical Center persons most knowledgeable or percipient witnesses.

Plaintiff also requests discovery be reopened for additional depositions of persons most knowledgeable and percipient witnesses from UCLA where decedent was transferred for liver transplant. Plaintiff had previously noticed these depositions to go forward between June 15 and 19 in Los Angeles and the motion at bench provides no reasoned explanation as to why they were taken off calendar or could not go forward. Plaintiff's prior counsel's desire to sequence these depositions after the desired Saint Agnes Medical Center depositions is not a reasonable explanation to take these depositions off calendar with the discovery deadlines looming if they were as necessary to the trial as counsel argues. Neither is the other proffered explanation that counsel was busy opposing the four summary judgment motions as all motions as noticed required the opposition to be filed prior to the week of the noticed depositions.

The court is not satisfied that plaintiff diligently pursued the UCLA-related depositions such that discovery should be reopened.

The motion to reopen discovery is denied in its entirety.

Opposition Requests for Second Motions for Summary Judgment

The testimony of Dr. Bailey raises additional questions as to what he was provided to review and the basis of the opinions expressed in the declarations submitted in opposition to the motions for summary judgment. (Penner Decl., ¶ 15(b), Ex. M, 69:5-7, 92:2-93:13, 102:10-16, 114:14-115:12; Mish Decl., ¶ 4; Casheros Decl., ¶ 11, Ex. D.) Dr. Bailey also recanted many opinions expressed in those declarations forming the basis for plaintiff's opposition to the multiple motions for summary judgment. (Penner Decl., ¶ 15(d)-(e), (g); Mish Decl., ¶ 6-7; Casheros Decl., ¶ 11.)

Defendants Saint Agnes Medical Center, Dr. Yankey, and Dr. Roshan, with joinder filed by Dr. Bharati, request the court find good cause to allow the filing of a second motion for summary judgment in light of Dr. Bailey's testimony undermining his own

opinions expressed in opposition to their previously filed motions. (Code Civ. Proc., §437c, subd. (a)(5).)

Code of Civil Procedure section 437c, subdivision (a)(5) states in pertinent part, “*on motion or application* of any party and a showing of good cause, the court may grant leave for the moving party to bring an additional motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (a)(5), emphasis added.)

The statutory relief requested requires the filing of a noticed motion. Accordingly, the court is unable to grant the relief sought raised in the oppositions to plaintiff's motion to reopen discovery.

The court is aware Defendants have reserved the date of March 17, 2027 for a motion for leave to file a second motion for summary judgment. The court is also aware the matter is on calendar for a trial setting conference on September 22, 2027 at 3:30 p.m. in Dept. 503. At that hearing the court's tentative is to shorten time for the motion for leave to file a second motion for summary judgment to January 21, 2027 at 3:30 p.m. in Dept. 503 and to continue the trial setting conference to the same date and time.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: JS **on** 9/15/2026.
(Judge's initials) (Date)